

		This order does not relieve Plaintiff/Cross-Defendant from any existing court orders, nor does it affect any pending dates, including but not limited to the informal discovery conference or the trial. Moving attorney to give notice.
111	Watkins vs. FCA US, LLC, 2023-01364783	Motion for Summary Judgment – DENIED Motion for Summary Adjudication – GRANTED IN PART AND DENIED IN PART Plaintiffs’ 1st, 2nd, 3rd, and 4th causes of action arise under the Song-Beverly Consumer Warranty Act, Civil Code section 1790 et seq. (the Act). The Act applies only to goods purchased within California. (Cummins, Inc. v. Superior Court (2005) 36 Cal.4th 478, 483 [“the Act does not apply unless the vehicle was purchased in California”]; Davis v. Newmar Corp. (2006) 136 Cal.App.4th 275, 278 [“Because title passed outside of California, the Act does not apply”]; Gaynor v. W. Rec. Vehicles, Inc. (C.D. Cal. 2007) 473 F.Supp.2d 1060, 1062 [“Application of the Song-Beverly Act is expressly limited to goods sold in California.”]; Barabino v. Dan Gamel, Inc. (E.D.Cal. July 25, 2006) 2006 U.S.Dist. Lexis 50722 at *8 [“California law is clear that where title passes outside of California, the Song-Beverly Act does not apply.”]; see 4 Witkin, Summary of Cal. Law, Sales § 327.) “A sale is deemed completed and consummated when the purchaser of the vehicle has paid the purchase price, or, in lieu thereof, has signed a purchase contract or security agreement, and has taken physical possession or delivery of the vehicle.” (Veh. Code § 5901, subd. (d).) It is undisputed that the sale of the vehicle in question was purchased in Nevada. (UMF 1, 2) Defendant has therefore met its burden under Code of Civil Procedure section 437c, subdivision (p)(2) to establish there is a complete defense to these causes of action, namely lack of standing. Plaintiff has failed to establish via admissible evidence a triable issue of material fact. Plaintiff’s argument about the government interest test is irrelevant because this is an issue of standing, not choice of law. Plaintiff’s argument that there is no

evidence whether this was a shipment contract or delivery contract is unavailing; the undisputed evidence is that Plaintiff was “stranded” in Las Vegas and had to purchase the vehicle to get home. (Watkins Decl., ¶¶3-4.) Plaintiff’s registration of the vehicle in California with the DMV does not create a triable issue as to the purchase of the vehicle in Nevada.

As to the 5th cause of action for violation of the Magnuson-Moss Warranty Act, California courts have held it “authorizes a civil suit by a consumer to enforce the terms of an implied or express warranty. Magnuson-Moss ‘calls for the application of state written ad implied warranty law, not the creation of additional federal law,’ Accordingly, the failure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magbnuson-Moss.” (Daugherty v. Amer. Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, 833.) Because the lack of standing bars the Plaintiff’s claims under the Act the claim under the Magnuson-Moss Act is barred because there is no state warranty claim remaining.

As to the 6th cause of action for fraudulent inducement by concealment, Defendant fails to offer admissible evidence that Plaintiff cannot prove an element of her claim or that a complete defense exists to it. As to this cause of action, the Defendant’s separate statement reads, in relevant part, as follows: “Plaintiff’s discovery responses and document production, served in response to FCA’s discovery demands on June 10, 2025, contains no evidence to support her claim for Fraudulent Inducement – Concealment.” The evidence supporting this allegedly undisputed material fact is Exhibit C to the declaration of Leonie Milstein, which contains about 180 pages of discovery requests and responses. Defendant fails to quote from, highlight, or even identify a single discovery response supporting this argument. In addition to violating California Rules of Court, rule 3.1350(d)(3) [“citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers”], Defendant has failed to come close to its burden under section 437c: “The defendant has shown that the plaintiff cannot establish at least one

		element of the cause of action by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence: The defendant must show that the plaintiff does not possess needed evidence, because otherwise the plaintiff might be able to establish the elements of the cause of action; the defendant must also show that the plaintiff cannot reasonably obtain needed evidence, because the plaintiff must be allowed a reasonable opportunity to oppose the motion.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) The motion for summary adjudication is GRANTED as to the first, second, third, fourth, and fifth causes of action, and is DENIED as to the sixth cause of action. Moving party to give notice.
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